



File No.: EXP202314324

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the claimant), on January 27, 2023, in the context of a labor dispute, sent an email to ***EMAIL.1 and ***EMAIL.2 indicating that the day before, "(...) events had occurred that could constitute a crime and that have been reported to the Court of Instruction ***COURT.1" by the claimant, an employee of CLÍNICA DENTAL BENALÚA, S.L., with CIF B53499547, and requesting "(...) that the images captured by the video surveillance system of the company CLINICA DENTAL BENALUA, SL from 09:30 to 11:00 on January 26, 2023, be preserved and made available to the aforementioned Courts."

On February 1, 2023, the claimant sent an electronic burofax to the defendant entity "(...) requesting the preservation of images from all video surveillance cameras on January 26, 2023, from 09:30 to 11:00, for submission to the judicial proceedings in the Social Court ***COURT.2 and the Court of Instruction ***COURT.1. All this based on the provisions of art. 22.3 LOPDGDD.

This request was reiterated on January 30, 2023, during the trial hearing at the Social Court ***COURT.2. And again on January 31, 2023, in the Court of Instruction ***COURT.1. Both requests were made verbally to the social administrator, and were recorded in the hearing recordings in which it was stated that these recordings had been preserved and access to them would be facilitated. By means of this, and pursuant to the provisions of art. 13 of the LOPDGDD, I request access to the recordings, by sending them to the email (...)"

On February 8, 2023, the claimant sent another burofax to CLÍNICA DENTAL BENALÚA, S.L. indicating that she had sent burofaxes on February 1 and 2 and 2 emails without receiving a response, reminding them that she had designated her lawyer's email for notification purposes. In this burofax, she requests:

- The cancellation of her data corresponding to her phone number and email address that the company had in its possession in accordance with article 15 of the LOPDGDD.
- Access to the images from the video surveillance cameras on January 26, 2023, between 09:30 and 11:30.
- That, in accordance with art. 22.3 of the LOPDGDD, a complete copy of the images from the video surveillance system on January 26, 2023, between 09:30 and 11:30, be sent to the Social Court ***COURT.2, for the proceedings pending trial between the parties."

SECOND: On February 13, 2023, a complaint was received at this Agency filed by the claimant against CLÍNICA DENTAL BENALÚA, S.L. for not having duly attended to her rights of access, limitation, and deletion of her personal data, stating that she had not received a response to her requests.

Various documents were submitted.

THIRD: In accordance with article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to CLÍNICA DENTAL BENALÚA ALICANTE, S.L., with CIF B42544791, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The electronic notification via the Notific@ system for this transfer expired, so it was sent again by postal mail, being received on April 24, 2023.

The Data Protection Officer stated that

"The right of access to the entity's video surveillance system was processed by Clínica Dental Benalúa, S.L., through the designated DPO, within the time and form in response to the burofax sent (...) on February 1, 2023 (in accordance with Regulation (EU) 2016/679 art. 15 to 21), being proven by

a technical report from the company responsible for maintaining the cameras, that the requested images were not available as the video surveillance system was malfunctioning at the time the request was made, and the affected party's right was attended to through the email provided for this purpose. (Attached are the burofax request, technical report of the malfunction and subsequent repair, access rights form, email sent, acknowledgment of receipt, and acknowledgment of reading)."

FOURTH: Regarding the response received at this Agency, it was considered that there were certain aspects that needed clarification. For this reason, a new letter was sent to Clínica Dental Benalúa Alicante in which, within five working days from the notification of this request, they should complement the initially submitted documentation by providing proof of the response regarding the exercise of the claimant's right to data deletion.

The electronic notification via the Notific@ system for this transfer expired.

FIFTH: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the claimant's requests as satisfied. Consequently, on May 8, 2023, for the purposes provided for in article 64.1 of the LOPDGDD,

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The Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. The complaint was forwarded to the Dental Clinic Benalúa so that within ten working days it could present any allegations it deemed appropriate, noting that, once the request for "(...) preservation of images from all surveillance cameras on January 26, 2023, from 09:30 to 11:00 hours, for submission to judicial proceedings in the Social Court ***COURT.2 and the Investigative Court ***COURT.1 (...)" was received, the right of access was assisted via email sent by the Data Protection Delegate to the indicated email address. The following was attached to the aforementioned email:

- REPORT FROM THE DATA PROCESSOR certifying that on the days before and after said request, the surveillance circuit was malfunctioning, and therefore, there were no recorded images from the requested period, including those from January 26, 2023. This is the reason why it is impossible to provide the images to the complainant, but it is certified through the proof of the right of access, which was sent to the indicated email address, for which this entity retains the acknowledgment of delivery and reading. (Attached:

(Doc. 1 Proof of the exercise of the right of access to the surveillance system,
Doc. 2 Report from the data processor of the surveillance system maintenance company,
Doc. 3 Acknowledgment of receipt,
Doc. 4 Acknowledgment of reading).

Regarding the right to erasure requested, as provided in Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights in its article 15 and REGULATION (EU) 2016/679 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and on the free movement of such data, which establishes that the data controller shall communicate any erasure of personal data or limitation of processing carried out in accordance with article 17, this Control Entity is informed that said right was already addressed at the time by erasing the complainant's personal email and phone number from our files, currently retaining only the identifying and labor-administrative data as the complainant is an employee of this clinic.

The requested right was addressed despite the fact that the interested party made the request via a burofax sent by her "lawyer" (who did not have the powers of representation), nor did she make a formal request in person, providing her ID.

Doc 5 is attached. Proof of the right to erasure.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by an interested party and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the Dental Clinic Benalúa Alicante, S.L. for analysis, to respond to this Agency within one month and to certify that it had provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on May 8, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint presented was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of the...

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Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim accepted.

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and must express their reasons in case they do not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

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Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them and being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if not obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Right of Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;

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- e) personal data must be deleted to comply with a legal obligation established in Union or Member State law applicable to the data controller;
- f) personal data has been obtained in relation to the offering of information society services mentioned in Article 8, paragraph 1.

2. When personal data has been made public and the data controller is obliged, under the provisions of paragraph 1, to delete such data, the data controller, taking into account the available technology and the cost of its application, shall adopt reasonable measures, including technical measures, to inform controllers processing the personal data of the data subject's request for deletion of any link to such personal data, or any copy or replica of the same.

3. Paragraphs 1 and 2 shall not apply when processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) to comply with a legal obligation requiring processing of data imposed by Union or Member State law applicable to the data controller, or to perform a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 could make impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the formulation, exercise, or defense of claims.

VI

Right to Restrict Processing

Article 18 of the GDPR, which regulates the right to restrict the processing of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the restriction of processing of personal data when one of the following conditions is met:

- a) the data subject contests the accuracy of the personal data, for a period enabling the controller to verify the accuracy of the data;
- b) the processing is unlawful and the data subject opposes the deletion of personal data and requests instead the restriction of its use;
- c) the controller no longer needs the personal data for the purposes of processing, but the data subject needs them for the formulation, exercise, or defense of claims;
- d) the data subject has objected to processing pursuant to Article 21, paragraph 1, while verifying whether the legitimate grounds of the controller override those of the data subject.

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2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for storage, with the consent of the data subject or for the formulation, exercise, or defense of claims, or to protect the rights of another natural or legal person or for important public interest reasons of the Union or a particular Member State.

3. Any data subject who has obtained the restriction of processing under paragraph 1 shall be informed by the controller before the lifting of such restriction."

It should be noted that the right to restrict processing enables the claimant to limit the processing of data when the accuracy of the personal data is contested, for a period allowing the controller to verify the accuracy of the data; when the processing is unlawful and the data subject opposes the deletion of personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the formulation, exercise, or defense of claims, or when the data subject has objected to the processing, while verifying whether the legitimate grounds of the controller prevail over those of the claimant.

VII

Conclusion

The rights procedure is instructed as a consequence of the denial of any of the rights regulated in data protection legislation. Therefore, in this case, only the facts related to those rights will be analyzed and assessed, excluding the rest of the issues presented.

In this case, and taking into account the provisions of the previous paragraph, it has been established that the claimant requested access to surveillance images, the deletion of part of their data, and the right to restrict processing regarding those images.

The responding party has provided the following documentation to justify the attention to the rights:

- Annex Doc. 1: It is an "Informative Form for Surveillance Cameras" where "(...) the client, patient, employee, or affected party is informed of the existence of the security camera file (...)" and in which it is noted that the claimant has requested to view the images.
- Annex Doc. 2: "Report commissioned from the data processing company maintaining the surveillance system" in which, following the request for extraction of recordings dated 26/01/2023, "(...) we verified that the recording system (DVR) was stopped due to a failure in the HDD (...) due to this, there are no recordings of any kind in your system."

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Annex Doc. 3 "Acknowledgment of receipt". An excerpt of a message titled "(Spam) Delivered: request for images C.Dental Benalúa" is provided, in which it appears that "The message was delivered to the following recipients:" including the address of the representative designated by the claiming party, and that two documents were attached, the content of which has not been provided for analysis and evaluation.

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Annex Doc. 4 Acknowledgment of reading of the email sent and provided as Annex Doc. 3.

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Annex Doc. 5: "Proof of the right to erasure" in which the Data File Manager indicates that "(...) has proceeded to erase, free of charge, in its files the following personal data of the applicant in accordance with what has been stated by them in their request: The erasure carried out was of the email and personal phone number of the applicant (...)"

Upon examining the documentation provided, it cannot be accepted as sufficient evidence that the requested rights have been duly addressed or denied with justification.

The aforementioned regulations do not allow requests to be overlooked as if they had not been made, leaving them without the response that the responsible parties are obliged to issue, even in cases where there are no data in the files or even in those cases where the requirements are not met, in

which case the recipient of such a request is likewise obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the claiming party informing them about the decision made regarding the requests for the exercise of rights is not attached, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Ms. A.A.A. considering that the provisions of Articles 15, 17, and 18 of the GDPR have been infringed and to urge CLINICA DENTAL BENALUA SL with NIF B53499547, to send to the claiming party, within ten working days following the notification of this resolution, a certification addressing the requested rights or denying them with justification indicating the reasons why the requests cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to CLINICA DENTAL BENALUA SL.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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